

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

-----X
CARY ST. CHARLES SMALL,

Plaintiff(s),

SUMMONS

-against-

Plaintiff resides at:
2054 Nostrand Ave, Apt 1H
Brooklyn, New York 11210

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER PEDRO
SANTANA, SHIELD #27624 OF TRANSIT BUREAU
ANTI-TERRORISM UNIT, POLICE OFFICER CHRISTOPHER
SHEA, SHIELD #27279 OF TRANSIT BUREAU ANTI-
TERRORISM UNIT and POLICE OFFICER ANGELINA
GAROFALO, SHIELD #22072 OF TRANSIT BUREAU
DISTRICT 34,

Defendant(s),
-----X

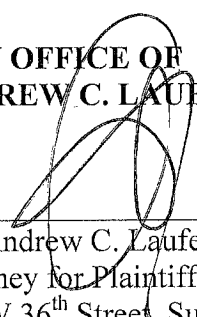
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York
April 30, 2015

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**


By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

POLICE OFFICER PEDRO SANTANA, SHIELD #27624
TRANSIT BUREAU ANTI-TERRORISM UNIT
145th Street and Saint Nicholas Avenue
Subway Station
New York, New York 10019

POLICE OFFICER CHRISTOPHER SHEA, SHIELD #27279
TRANSIT BUREAU ANTI-TERRORISM UNIT
145th Street and Saint Nicholas Avenue
Subway Station
New York, New York 10019

POLICE OFFICER ANGELINA GAROFALO, SHIELD #22072
c/o TRANSIT BUREAU DISTRICT 34
1243 Surf Avenue
Brooklyn, New York 11224

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

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CARY ST. CHARLES SMALL,

Plaintiff(s),

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER PEDRO
SANTANA, SHIELD #27624 OF TRANSIT BUREAU
ANTI-TERRORISM UNIT, POLICE OFFICER CHRISTOPHER
SHEA, SHIELD #27279 OF TRANSIT BUREAU ANTI-
TERRORISM UNIT and POLICE OFFICER ANGELINA
GAROFALO, SHIELD #22072 OF TRANSIT BUREAU
DISTRICT 34,

Defendant(s),

-----X

Plaintiff, by and through his attorney, Law Office of Andrew C. Laufer, PLLC complaining of the defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned the plaintiff was a resident of the County of Kings, City and State of New York.
2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned the defendants, POLICE OFFICER PEDRO SANTANA, SHIELD #27624 OF TRANSIT BUREAU ANTI-TERRORISM UNIT, POLICE

OFFICER CHRISTOPHER SHEA, SHIELD #27279 OF TRANSIT BUREAU ANTI-TERRORISM UNIT and POLICE OFFICER ANGELINA GAROFALO, SHIELD #22072 OF TRANSIT BUREAU DISTRICT 34 was and still is employed with the NEW YORK CITY POLICE DEPARTMENT.

5. That prior to the institution of this action, a notice of claim was duly served upon and filed with the city on behalf of plaintiff.

6. That on or about January 22, 2015 a hearing was held by the City pursuant to municipal law 50H.

7. That at all time herein mentioned the officers were acting within the scope and course of their employment with the New York Police Department, and under color of state law.

8. That at all times herein mentioned, all of the actions of the officers alleged herein was done within the scope and course of his employment with the New York Police Department, and under color of the state law.

9. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

FIRST CAUSE OF ACTION

10. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

11. That on or about January 30, 2014, at approximately 6:45 AM at the 125th Street/Saint Nicholas Avenue Subway Station, New York, New York, the City, its agents, servants and employees, including but not limited to Police Officer Pedro Santana, Shield #27624 of Transit Bureau Anti-Terrorism Unit, Police Officer Christopher Shea, Shield #27279 of Transit Bureau

Anti-Terrorism Unit and Police Officer Angelina Garofalo, Shield #22072 of Transit Bureau District 34 wrongfully and falsely arrested, imprisoned and detained plaintiff without any right or justifiable grounds therefore.

12. That the aforesaid arrest, detention and imprisonment continued at the Transit Bureau District 34.

13. That the said arrest, detention and imprisonment was caused by the City, its agents, servants and employees, including but not limited to the officers, without a warrant and without any reasonable cause or belief that plaintiff was in fact guilty of any crime.

14. That the city, its agents, servants and employees, as set forth above, intended to confine plaintiff; that plaintiff was conscious of the confinement; that plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

15. That by reason of the false arrest, imprisonment and detention of plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in her credit and circumstances and was prevented and hindered from performing and transacting her necessary affairs and her business and employment, and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

SECOND CAUSE OF ACTION

16. Plaintiff repeats and realleges each and every allegation contained in the First Cause of Action as if fully set forth at length herein.

17. That immediately prior to and during the course of his arrest and detention, plaintiff was assaulted and battered by said officers.

18. That the reason of the aforesaid, plaintiff sustained personal injuries, endured and will endure pain and suffering and loss of enjoyment of life, and economic loss, and was otherwise damaged.

THIRD CAUSE OF ACTION

19. Plaintiff repeats and realleges each and every allegation contained in the First, Second and Third Causes of Action as if fully set forth at length herein.

20. That the aforesaid actions, and resulting injuries to plaintiff, were due to the negligence of the City in the hiring, retention, and training of its employees, including the officers involved in the arrest, assault and battery, and malicious prosecution of the plaintiff.

FOURTH CAUSE OF ACTION

20. Plaintiff repeats and realleges each and every allegation contained in the First, Second and Third and Fourth Causes of Action as if fully set forth at length herein.

21. That plaintiff was deprived of her rights, privileges and immunities secured by the Constitution of the United States of America and of the state of New York, and his rights pursuant to 42 USC sec.1983 by those who, under color of a statute or regulation of a state, caused plaintiff to be so deprived.

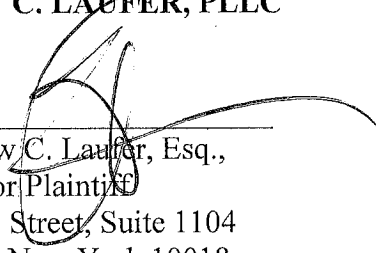
22. That the aforesaid actions by the detective officer were done pursuant to an official municipal policy or custom of the city, which policy involved the indiscriminate detention, interrogation, intimidation, and prosecution of individuals were engaged in criminal conduct, and for the purpose of thwarting the fair administration of justice.

23. That defendants herein, their agents, servants and employees, motivated in part by racial and/ or ethnic animus, conspired to deprived plaintiff of her federal civil and constitutional rights, in violation of 42 USC 1985.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for his pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
April 30, 2015

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

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CARY ST. CHARLES SMALL,

Plaintiff(s),

-against-

VERIFICATION

THE CITY OF NEW YORK, NEW YORK CITY
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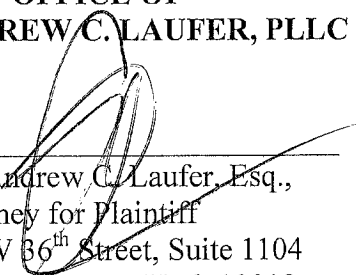
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ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the plaintiff, CARY ST. CHARLES SMALL, in the within action. That I have read the foregoing complaint and know the contents thereof, and that the same are true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to these matters I believe them to be true.
2. That the sources of my information and knowledge are records and investigation reports maintained within the file.
3. That the reason this verification is made by the affirmant and not by the plaintiff is that the plaintiff does not reside in the County of New York, which is the county wherein this firm maintains its office.

Dated: New York, New York
April 30, 2015

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

CARY ST. CHARLES SMALL,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
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TERRORISM UNIT and POLICE OFFICER ANGELINA
GARAFALO, SHIELD #22072 OF TRANSIT BUREAU
DISTRICT 34,

Defendants,

SUMMONS AND COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
255 W. 36th Street, Suite 1104
New York, NY 10018

Tel: (212) 422 1020

Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:

☐ **NOTICE OF ENTRY**

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ **NOTICE OF SETTLEMENT**

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on at M.
Dated,

Yours, etc.

Law Office of Andrew C. Laufer